

A
MEASURE

PASSED BY

The National Assembly of the Church of England.

To enable the filling of vacancies in benefices to be postponed for certain periods and to make provision for the performance of the ecclesiastical duties, the use of the houses of residence, the management of the property, and the application of the income of the benefices during those periods. [22nd May 1946.]

1.—(1) In any case where a benefice is vacant and the bishop is satisfied that such action is proper, he shall, subject to the provisions of this Measure, have power, with the consent in writing of the patron of the benefice (where he is not himself the patron thereof) and of the appropriate diocesan committee, and after consultation with the parochial church council of the parish, or each of the parishes concerned, to declare by notice in writing that during such period not exceeding five years as may be specified in the notice (in this Measure referred to by the expression "suspension period") the vacancy in the benefice shall not be filled, and during that time the patron shall not be entitled to exercise his right of presentation.

Bishop
enabled
to postpone
filling of
vacant
benefice.

In this subsection the expression "appropriate diocesan committee" means a committee appointed specially for the purposes of this Measure by the diocesan conference, or some existing committee empowered by that conference to act for those purposes.

(2) The power conferred by this section may be exercised at any time within a period of seven months from the occurrence of the vacancy in the benefice, or from the passing of this Measure (whichever is the later), and after the lapse of the patron's right of presentation may be exercised without the consent of the patron.

(3) During the currency of any suspension period the bishop may from time to time by a further notice, given with such consents and after such consultation as were required for the original notice, extend the period, but so that the total period of suspension during any one vacancy shall not exceed seven

years from the occurrence of the vacancy or from the passing of this Measure (whichever is the later).

(4) The bishop may determine a suspension period at any time by notice in writing taking effect not less than fourteen days after the date thereof.

(5) The bishop shall cause every notice given by him under this section to be filed forthwith in the diocesan registry, and on the filing of every such notice he shall pay a fee of two shillings and sixpence to the diocesan registrar.

(6) The bishop shall cause a copy of every notice given by him under this section to be sent forthwith to the patron of the benefice, (where he is not himself the patron thereof), to the churchwardens of the parish, or each of the parishes, concerned and to the sequestrators appointed under the next succeeding section.

Churchwardens receiving a copy of any such notice shall forthwith cause it to be affixed at or near to the door of the parish church.

Appointment
of seques-
trators.

2. In the case of any benefice with respect to which the bishop has exercised the power conferred on him by the foregoing section the bishop shall during the vacancy sequester the profits of the benefice, and in appointing sequestrators shall ensure that one, at least, of the persons appointed is specially qualified to discharge efficiently the duties of the office.

Performance
of ecclesiastical
duties.

3. During any such vacancy as aforesaid—

- (i) the bishop shall make or direct the sequestrators to make such provision for the performance of the ecclesiastical duties of the benefice as he may from time to time think fit after consultation with the parochial church council of the parish, or each of the parishes, concerned, and, so far as possible, with the patron of the benefice, (where he is not himself the patron thereof) ;
- (ii) a curate in charge of the benefice, appointed as such by the bishop, may be required by the bishop to reside in the house of residence of the benefice ;
- (iii) a curate in charge so appointed, shall for the purposes of the Parochial Church Councils (Powers) Measure, 1921 and the Rules for the Representation of the Laity, 1929, and for such other purposes as the bishop may from time to time direct, be deemed to be the incumbent or, as the case may be, the minister.

4.—(1) Sequestrators appointed in pursuance of section two of this Measure, in addition to exercising any powers vested in them as such by the Benefices (Sequestrations) Measure, 1933, or by the general law relating to sequestrations, may with the consent of the bishop exercise in relation to any property of the benefice, any other power which an incumbent would have. They may also with the consent of the bishop and after consultation with the parochial church council of the parish let the house of residence of the benefice for such period as they deem advantageous, and section fifty-nine of the Pluralities Act, 1838, shall not apply in relation to any such letting.

Management and application of benefice property and income.

23 & 24 Geo. 5 No. 4.

1 & 2 Vict. c. 106.

Nothing in this subsection shall affect the right of a patron of a benefice to exercise while the benefice is vacant any right of patronage vested in the incumbent thereof.

(2) Notwithstanding anything to the contrary contained in the Statute 28 Henry VIII, cap. 11, entitled "An Acte for restitucon of the first Fruytys in the tyme of Vacacion to the next Incumbent," or in any other Act or any Measure, the sequestrators shall, subject to the provisions of the next succeeding subsection, apply the income of the benefice accruing during any vacancy in respect of which the bishop has exercised the power conferred on him by section one of this Measure—

- (i) first, in payment to the bishop of all expenses incurred by him under this Measure in respect of the benefice and in payment of all expenses properly incurred in the collection of the income of the benefice and in making provision for the performance of the ecclesiastical duties thereof ;
- (ii) secondly, in payment of all expenses properly incurred in the exercise of the powers by law belonging to sequestrators or conferred on them by the Benefices (Sequestrations) Measure, 1933, or by this Measure ; and
- (iii) thirdly, in payment of any balance remaining in their hands at the close of the sequestration to the incumbent next succeeding to the benefice :

Provided that—

- (i) if at any time during the course of the sequestration the balance in their hands exceeds one hundred pounds, they may with the approval of the bishop, and shall if he so directs, pay the excess or some part thereof to the Ecclesiastical Commissioners to be applied by them in their discretion for the augmentation of the benefice, or for the improvement of the house of residence, or otherwise for the advantage of the benefice ; and

- (ii) if at the close of the sequestration the balance in their hands exceeds one hundred pounds, then, except in so far as the bishop may direct them to pay the excess or some part thereof to the former curate in charge (if any) or to the new incumbent, they shall pay the excess to the Ecclesiastical Commissioners to be applied by them as aforesaid.

(3) The sequestrators may, with the consent of the bishop, apply towards the payment of an assistant curate—

- (a) any sum charged for that purpose on the endowments of the benefice ; and
(b) so much, if any, of the income of the benefice as the incumbent has customarily allocated to that purpose.

They may also with the like consent pay the whole or any part of any sum so charged as aforesaid into the diocesan stipends fund of the diocese, or into such other fund applicable for the cure of souls within the diocese as the bishop, after consultation with the diocesan board of finance, may from time to time direct.

(4) The sequestrators shall annually, at such date as the bishop may direct, and so soon as may be after the close of the sequestration, render to the bishop accounts of their receipts and expenditure, and shall furnish such information with respect to the accounts as he may call for.

Saving in
respect of
lapse, etc.

21 & 22 Geo. 5.
No. 3.

5.—(1) A suspension period shall not, nor shall any extension thereof, be reckoned for purposes of lapse or for the purpose of computing any period within which any act is required or permitted to be performed by the Benefices (Exercise of Rights of Presentation) Measure, 1931.

(2) This section shall bind the Crown.

Notifications,
etc., to patrons
and parochial
church
councils.

6.—(1) Any notification or other communication to be given or made to a patron under this Measure shall be deemed to have been duly given or made if sent by post addressed to the patron at his last known place of abode or business in the United Kingdom, or, if no such place is known, such notification or other communication may be given or made by advertisement in a newspaper circulating in the neighbourhood of the benefice concerned.

(2) Any notification or other communication to be given or made to a parochial church council under this Measure shall be deemed to have been duly given or made if sent by post addressed to the secretary of the council by his name at his usual or last known place of abode, or, if his name or place of abode is unknown, addressed to him by the title of secretary of the council in question at the last known place of abode of one of the churchwardens of the parish.

7. In this Measure—

Interpretation.

the expression "presentation" includes collation, nomination and any other manner of filling vacant benefices, and the word "present" shall be construed accordingly ;

the expression "the patron" in relation to any benefice means the person or persons for the time being entitled, otherwise than by lapse, to present or collate to that benefice, upon a vacancy, including—

(a) in any case where the right to present or collate is vested in different persons jointly, every person whose concurrence would be required for the exercise of the joint right, and

(b) in any case where the patronage is vested in different persons by way of alternate or successive rights of presentation or collation, every person who is for the time being the person who would be entitled to present or collate on the next, or any subsequent turn ;

the expression "the bishop" when used with reference to a benefice means the bishop for the time being of the diocese in which that benefice is situate (including during a vacancy in the see the guardian of the spiritualities thereof).

8.—(1) This Measure shall extend to the whole of the Provinces of Canterbury and York, except the Channel Islands and the Isle of Man, but may, at any time before the expiration of two years from the date declared under section one of the Emergency Legislation Measure, 1944, to be the date on which the emergency that was the occasion of the passing of the Clergy (National Emergency Precautions) Measure, 1939, came to an end, be applied to the Channel Islands or either of them, as defined in the Channel Islands (Church Legislation) Measure, 1931, in accordance with the procedure set out in the schedule to that Measure.

Extent,
duration and
short title.

7 & 8 Geo. 6.

No. 1.

2 & 3 Geo. 6.

No. 3.

21 & 22 Geo. 5.

No. 4.

(2) The powers conferred by section one of this Measure shall cease upon the expiration of ten years from the passing of the Measure and thereafter no new suspension period shall be created nor shall any current suspension period be extended under this Measure :

Provided that nothing in this subsection shall affect the validity of any suspension period already in existence.

(3) This Measure may be cited as the Benefices (Suspension of Presentation) Measure, 1946.